

Sharadkumar S/O : Shivarudrappa ... vs Smt. Shaila W/O : Sharadkumar ... on 4 March, 2011

Author: Ram Mohan Reddy

Bench: Ram Mohan Reddy

IN THE HIGH COURT OF KARNATAKA
CIRCUIT BENCH AT DHARWAD
DATED THIS THE 4th DAY OF MARCH, 2011 | :
BEFORE

THE HON'BLE MR.JUSTICE RAM MOHAN REDDY «

WRIT PETITION No.69085/2010.(GM CPC}.
BETWEEN:

SHARADKUMAR S/OS HIVARUDR APPA,
YADAVARNNAVAR,

AGE: 38 YEARS, OCC: ADV OCATE.
R/O PLOT NO.S65, 28D STAGE, .

RANI] CHANNAMMA NAGAR,

BELGAUM,
. PETITION Ek

(BY SRLPRASHANTH § HOSMANI, ADV.)
AND:

SMT SHAILA wy 0 SH2 ARE. DKUMAR YADAVANNAVAR,
AGE: 33 YEARS,
~ OCC: SERVICE,
Rk OC. CPO BALAPPA S RADDY
L727 K VI IVAN AGAR, GOKAK
Di <1 BELGAUM, oe

(BY SRI. BHARATESH B ALASANDI, ADV}
ESPONDEIENT

~ ''PHIS WP FILED UNDER ARTICLE 226 & 227 OF
2=NSTIPUTION OF INDIA PRAYING TO QUASH THE ORDER

: LA. NO. a DATED 10/ 1b / 2010 PASSED BY THE FAMILY
IRT JUDGE BELGAUM IN M.C.NO.72/2010, THE COPY

be

egies to. seek divorce by mutual consent and accordingly

OF THE IMPUGNED ORDERS PRODUCED ALONG WITH

THIS WRIT PETITION AS ANNEXURE-D AND ETC.
THIS PETITION COMING ON FOR ORDERS. THE.

COURT MADE THE FOLLOWING: a

ORDER

The rejection of the husband's |A No.2 under Order Rule 17 rfw Sec. 151 of CPO to amend. the "petition in M.C.No. 72/2010 by order dated 10/11/2610 of the Family court, Belgaum is called in question in this petition.

2. There is ito dispute over, the relationship of the parties. In other words "vetitioner is the husband while u respondent 1S the wile. Fetition er, é a practicing lawyer having taken ivy mattiage. the. tesporident on 15/3/2007 in accordance *, with 'Hinda ~rights, fled the petition on 15.04.2070 invokitig Section 13 () Gea) of the Hmadu

- Marriage Aét for dissclution of the marriage. It appears that the parties-by consent, having come to the conclusion that the marriage w as irretrievable on account of incompatibility, . ietitioner filed TA No.2? under Order Vi Rule 17 r/w Sec. io! £ of CPC seeking leave of the Court to amend the petition so as a to invoke Section 13(B) of the Hindu Marriage Act. The Court below having considered the application and keepme. in mind the observation of the Supreme Court in the ce held that # is the Supreme Court alone.in' exercise of its extraordinary powers uncer Article, 142 "ef the Cofistitution, convert a proceeding under Section 43 of the Hindu Marriage Act, 1955, into one under Section 13.B and' pass a decree for mutual divorce, without waiting for the statutory period of six months and acchrdingly séjectéd the application bv the order impugn ed.

3. Shere 6. force. in -the submission of the learned COUNnSE! for the parties. It is ne doubt true that under Article 142 of the Coustitution 'of "india it is the Supreme Court "which can,in exercise ofits extraordinary jurisdiction in the

-ding under Section 13 of Hindu Marriage pre Act, 1955, convert it mto one under Section 13 B and passa oo decree for Hi tual divorce, without waiting for the statutory . "period ef six months, and none of the other Courts. The 'exercise of jurisdiction under Articie 142 is with reference to the passing of decree of divorce by mutual consent within statutory period of 6 months. In the instant case, petitioner did not seek a decree of divorce of mutual consent within the statutory period of 6 months, but. sought for amendment of the petition from Section #36) (ath. to one, under Section 1318}.

4, Learned counsel for the parties submits that they are willing to await the completion af 'thé. statutory period after the amendment to consider the elaim for divorce by mutual consent: -

y of the matter, the Court below was not 5, In that vie justified in réjecting [ANo.2.

6. In the result petition is allowed. Order dated 10/11/29otG-is quashed. No. 2 is allowed. Petitioner is pia; Soo FRECL EE _ permitted -to amend M.C.No.72/2010 accordingly. The "parties are directed to ay 'ait the expiry of the statutory neriod of G naorttis for consideration of the relief for a decree of diverce by mutual consent.